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17/833,614	06/06/2022	Yu Fang	SONA-0012-U01	6304

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EXAMINER	
ALGIBHAH, HAMZA N	

ART UNIT	PAPER NUMBER
2441	

NOTIFICATION DATE	DELIVERY MODE
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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

uspatents@gtclawgroup.com

Office Action Summary	Application No. 17/833,614	Applicant(s) Fang et al.	
	Examiner HAMZA N ALGIBHAH	Art Unit 2441	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 08/07/2024.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☑ This action is **FINAL.** 2b) ☐ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-8,10-18 and 202-207 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-8,10-18 and 202-207 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 08/18/2023 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

Detailed Action

1. ***Claims*** 1-8, 10-18 and 202-207 are pending.

2. ***Claims*** 1-8, 10-18 and 202-207 ***are rejected.***

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on nonstatutory double patenting provided the reference application or patent either is shown to be commonly owned with the examined application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement. See MPEP § 717.02 for applications subject to examination under the first inventor to file provisions of the AIA as explained in MPEP § 2159. See MPEP § 2146 *et seq.* for applications not subject to examination under the first inventor to file provisions of the AIA. A terminal disclaimer must be signed in compliance with 37 CFR 1.321(b).

The filing of a terminal disclaimer by itself is not a complete reply to a nonstatutory double patenting (NSDP) rejection. A complete reply requires that the terminal disclaimer be accompanied by a

reply requesting reconsideration of the prior Office action. Even where the NSDP rejection is provisional the reply must be complete. See MPEP § 804, subsection I.B.1. For a reply to a non-final Office action, see 37 CFR 1.111(a). For a reply to final Office action, see 37 CFR 1.113(c). A request for reconsideration while not provided for in 37 CFR 1.113(c) may be filed after final for consideration. See MPEP §§ 706.07(e) and 714.13.

The USPTO Internet website contains terminal disclaimer forms which may be used. Please visit www.uspto.gov/patent/patents-forms. The actual filing date of the application in which the form is filed determines what form (e.g., PTO/SB/25, PTO/SB/26, PTO/AIA/25, or PTO/AIA/26) should be used. A web-based eTerminal Disclaimer may be filled out completely online using web-screens. An eTerminal Disclaimer that meets all requirements is auto-processed and approved immediately upon submission. For more information about eTerminal Disclaimers, refer to www.uspto.gov/patents/apply/applying-online/eterminal-disclaimer.

Claims 1-8, 10-18 and 202-207 are provisionally rejected on the ground of nonstatutory double patenting as being unpatentable over claims 1-8 of copending Application No. 18093956 (reference application). Although the claims at issue are not identical, they are not patentably distinct from each other because claim 1 of the instant application states “automation description” instead of “task description” stated on claim 1 of the co-pending application. Since an “automation description” can be one possible type of a “task description”, the claims are not patentably distinct from each other.

Instant claim	18093956 claim
1. A system, comprising: - a vehicle having a network comprising a plurality of end points; - a controller, comprising: - an automation definition circuit structured to	1. A system, comprising: - a vehicle having a network comprising a plurality of end points; - a controller, comprising: - an automation definition circuit structured to

interpret an **automation** description; - an automation management circuit structured to provide an **automated** action plan in response to the **automation** description; and - an automation execution circuit structured to provide an **automation** command in response to the **automated** action plan; and wherein an end point of the plurality of end points is responsive to the **automation** command to implement an **automated** vehicle response.	interpret a **task** description; - an automation management circuit structured to provide a **task** action plan in response to the **task** description; and - an automation execution circuit structured to provide a **task** execution command in response to the **task** action plan; wherein an end point of the plurality of end points is responsive to the **task** execution command to implement a **task** for the vehicle.

This is a provisional nonstatutory double patenting rejection because the patentably indistinct claims have not in fact been patented.

Claims 1-8, 10-18 and 202-207 are provisionally rejected on the ground of nonstatutory double patenting as being unpatentable over claims 1-11 of copending Application No. 18093964 (reference application). Although the claims at issue are not identical, they are not patentably distinct from each other. Each of the limitation of the copending claims in the above rejection is narrower than claim in the instant application. It would have been obvious to a person of ordinary skill in the art at the time the invention was made to omit elements wherein the remaining elements perform as before. A person of ordinary skill could have arrived at the present claims by omitting the details of the patented claims. See In re Karlson (CCPA) 136 USPQ 184, decided January 16, 1963 ("Omission of element and its function in combination is obvious expedient if remaining elements perform same functions as before").

Instant claim	18093964 claim
1. A system, comprising: - a vehicle having a network comprising a plurality of	1. A system, comprising:

end points; - a controller, comprising: - an automation definition circuit structured to interpret an automation description; - an automation management circuit structured to provide an automated action plan in response to the automation description; and - an automation execution circuit structured to provide an automation command in response to the automated action plan; and wherein an end point of the plurality of end points is responsive to the automation command to implement an automated vehicle response.	- a vehicle having a network comprising a plurality of end points; and - a controller, comprising: - an automation definition circuit structured to interpret an automation description generated by a device external to the vehicle, wherein the automation description is for at least one of: a speaker system of the vehicle; a seat heating system of the vehicle; a seat positioning system of the vehicle; an environmental management system of the vehicle; a lighting system of the vehicle; or an off-vehicle messaging system of the vehicle; - an automation management circuit structured to provide an automated action plan in response to the automation description, and to store the automated action plan as a data file on a data storage communicatively coupled to the controller; and - an automation execution circuit structured to provide an automation command in response to the automated action plan; and wherein an end point of the plurality of end points is responsive to the automation command to implement an automated vehicle response.

This is a provisional nonstatutory double patenting rejection because the patentably indistinct claims have not in fact been patented.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

3. ***Claim***(s) 1-8, 10-18 and 202-207 is/are rejected under 35 U.S.C. 103 as being unpatentable over Breed (Pub. No.: US 2014/0276090 A1) and TAMORI (WIPO publication, Pub. No.: WO/2020/100584 published on 05/22/2020) wherein the corresponding US application publication (Pub. No.: US 2021/0387640 A1) is used as an English translation for the WIPO publication.

As per claim 1, Breed discloses A system, comprising:

- ***a vehicle having a network comprising a plurality of end points*** (Breed, Fig 3-4, paragraph 0113, 0117, wherein perspective view with parts cutaway and removed of a vehicle showing the passenger compartment containing electric field occupant sensing systems associated with both the driver and passenger seats is illustrated in FIG. 3. In addition, the plurality of components shown in Fig. 4 can be the plurality of end points as claimed)***;***
- ***a controller*** (Breed, Fig 4 item 79, paragraph 0105, wherein an electronic control unit (ECU) 9 which performs the health monitoring calculations as explained below. ECU 9 includes software and hardware known to those skilled in the art, such as a processor and signal processing circuitry and software embodied on non-transitory computer-readable media to

implement the processing stages described herein)***, comprising:***

- ***an automation definition circuit structured to interpret an automation description*** (Breed, Fig 9, paragraph 0134, 0136, wherein antenna routine 141 will look for the strongest antenna signals for heartbeat, respiration rate and occupant motion. Once selected, control passes to the modules that acquire respiration 142, acquire heartbeat 143, and acquire motion 144 and establish or record normal respiration 145, normal heartbeat 146, and normal motion frequency 147, what will be termed the established respiration rate, heartbeat rate and typical occupant motion. Steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e.)***;***
- ***an automation management circuit structured to provide an automated action plan in response to the automation description*** (Breed, Fig 9, paragraph 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156)***; and***
- ***an automation execution circuit structured to provide an automation command in response to the automated action plan*** (Breed, Fig 9, paragraph 0136-0137, wherein the vehicle control routine 156 may also be performed partly or entirely by equipment on the vehicle upon command by a software program that is executed when needed. The equipment necessary for the control unit to invoke control of the vehicle includes, but is not limited to, devices that are coupled to the steering wheel or steering system, the brakes or braking system, the throttle system, transmission and/or engine. These devices may be controlled by software to reduce the speed of the vehicle to a stop and direct the vehicle to a safe area, e.g., the side or shoulder of a road. The vehicle control routine 156 may therefore correspond to or encompass a processor

and control equipment that is coupled to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or actuators therefor)***; and***

- ***wherein an end point of the plurality of end points comprises a sensor of the vehicle and is responsive to the automation command to implement an automated vehicle response***

{Breed, Fig 9, paragraph 0136-0137, wherein the vehicle control routine 156 may also be performed partly or entirely by equipment on the vehicle upon command by a software program that is executed when needed. The equipment necessary for the control unit to invoke control of the vehicle includes, but is not limited to, devices that are coupled to the steering wheel or steering system, the brakes or braking system, the throttle system, transmission and/or engine. These devices may be controlled by software to reduce the speed of the vehicle to a stop and direct the vehicle to a safe area, e.g., the side or shoulder of a road. The vehicle control routine 156 may therefore correspond to or encompass a processor and control equipment that is coupled to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or actuators therefor}. Breed does not explicitly disclose that ***the sensor is responsive to the automation command***. However, TAMORI discloses that ***the sensor is responsive to the automation command*** (TAMORI, paragraph 0145-0146, 0222, In a case where the emergency avoidance unit 171 detects occurrence of the emergency situation, the emergency avoidance unit 171 plans the operation of the user's car for avoiding the emergency situation, such as sudden stop or sharp turn. The emergency avoidance unit 171 supplies data indicating the planned operation of the user's car to the acceleration and deceleration control unit 172, the direction control unit 173, and the like. For example, the acceleration and deceleration control unit 172 calculates a control target value of a drive force generation device or a braking device for implementing the planned acceleration, deceleration, or sudden stop, and supplies a control command indicating the calculated control target value

to the drive system control unit 107.

Fig 10 step S54-S62, paragraph 0271-0272, wherein the vehicle interior environment recognition unit 201 (sensor) reads out the line-of-sight detection result from the vehicle interior information and determines whether or not the line-of-sight has been detected. In addition, paragraph 0274, the vehicle interior environment recognition unit 201 acquires the vehicle interior information again, and determines whether or not the driver's arousal is encouraged by the feedback and the line-of-sight becomes able to be detected. In addition, paragraph 0277, the vehicle interior environment recognition unit 201 acquires the vital data such as the driver's heartbeat, pulse, body surface pulse wave, and body temperature in the vehicle interior information).

Therefore, it would have been obvious to one ordinary skill in the art before the effective filing date of the invention to modify Breed in view of TAMORI such that at least one sensor is enabled in response to a command to implement an automated vehicle response as claimed because this would have enabled the vehicle control unit 211 controls the acceleration and deceleration control unit 172 and the direction control unit 173 to control the operation of the vehicle 11 according to the operation plan and move the vehicle 11 to the medical institution or the merging point with the emergency vehicle (see TAMORI paragraph 0224).

Examiner Note: The components labeled as the ‘automation definition circuit,’ ‘automation management circuit,’ and ‘automation execution circuit’ are asserted to form integral parts of a unified controller. Breed 's system, as depicted in paragraph 0105 as an example, accomplishes the described functions through an ‘n electronic control unit (ECU) ' Consequently, it is to be inferred that the ECU inherently encompasses all essential circuits required to execute the aforementioned functions.

As pre claim 2, claim 1 is incorporated and Breed discloses wherein the automation description comprises at least a portion of a policy for the vehicle (Breed, Fig 9, paragraph 0134, 0136, wherein antenna routine 141 will look for the strongest antenna signals for heartbeat, respiration rate and occupant motion. Once selected, control passes to the modules that acquire respiration 142, acquire heartbeat 143, and acquire motion 144 and establish or record normal respiration 145, normal heartbeat 146, and normal motion frequency 147, what will be termed the established respiration rate, heartbeat rate and typical occupant motion. Steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e.);

As pre claim 3, claim 1 is incorporated and Breed discloses **wherein the automated action plan comprises at least one of: a data description of data to be collected; an actuator response; or a trigger description** (Breed, Fig 9, paragraph 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156);

As pre claim 4, claim 1 is incorporated and Breed discloses **wherein the end point of the plurality of end points comprises an actuator of the vehicle** (Breed, Fig 9, paragraph 0137, wherein the vehicle control routine 156 may therefore correspond to or encompass a processor and control equipment that is coupled to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or **actuators** therefor);

As pre claim 5, claim 1 is incorporated and Breed discloses **wherein the end point of the plurality of end points comprises a sensor of the vehicle** (Breed, Fig 4, paragraph 0117, wherein FIG. 4 is a block diagram of a variety of occupant sensing and health monitoring systems illustrating that various systems can be used together. As shown in FIG. 4, a respiration sensor 71 is used together with a heartbeat sensor 72, an optical sensor 73, a motion sensor 74, one or more weight sensors 75, a seatback angle sensor 76, one or more ultrasonic sensors 77 and a seat track sensor 78 (although only a subset of these sensors may be provided and/or used at any one time). These types of sensors are known sensors and any such sensors may be used in the invention);

As pre claim 6, claim 1 is incorporated and Breed discloses **wherein the end point of the plurality of end points comprises a second controller** (Breed, Fig 8, wherein one of the airbag system, warning and verification system and vehicle control system can be the second controller);

As pre claim 7, claim 6 is incorporated and Breed discloses **wherein the end point of the plurality of end points comprises a second controller** (Breed, Fig 9, paragraph 0137, wherein the vehicle control routine 156 may therefore correspond to or encompass a processor and control equipment that is coupled to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or actuators therefor);

As pre claim 8, claim 6 is incorporated and Breed discloses **wherein the second controller is further configured to provide a confirmation value to the controller in response to implementing the automate vehicle response** (Breed, Fig 9, paragraph 0132, 0140, 0232,

wherein the routine is illustrated generally at 180. A first step in the routine 180, at 181, is to initiate a warning set counter. The second step 182 is to generate and send a message in some form to get the attention of the driver. This message can be in any of several forms, e.g., audible, visual, tactile, such as a warning buzzer or a flashing light which can suffice, but this may confuse a driver that is unfamiliar with the system. If the vehicle is equipped with a heads-up display or other display that will get the attention of an alert driver, then a message can be displayed on one or more of such displays. A preferred message is to have a synthesized or recorded voice announce a message to the driver. A combination of the above warnings can be better still. The message can instruct the driver to take some deliberate action which will not interfere with his ability to operate the vehicle but will nevertheless indicate that he has received the message and responded in a timely manner);

As pre claim 10, claim 1 is incorporated and Breed discloses **wherein the end point comprises a sensor** (Breed, Fig 4, paragraph 0117, wherein FIG. 4 is a block diagram of a variety of occupant sensing and health monitoring systems illustrating that various systems can be used together. As shown in FIG. 4, a respiration sensor 71 is used together with a heartbeat sensor 72, an optical sensor 73, a motion sensor 74, one or more weight sensors 75, a seatback angle sensor 76, one or more ultrasonic sensors 77 and a seat track sensor 78 (although only a subset of these sensors may be provided and/or used at any one time). These types of sensors are known sensors and any such sensors may be used in the invention)**, and wherein a second end point comprises an actuator** (Breed, Fig 9, paragraph 0137, wherein the vehicle control routine 156 may therefore correspond to or encompass a processor and control equipment that is coupled to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or **actuators** therefor);

As pre claim 11, claim 1 is incorporated and Breed discloses **the vehicle having a second network having a second plurality of end points; a second end point of the second plurality of end points, wherein the second end point is responsive to the automation command to implement the automated vehicle response** (Breed, Fig 3, paragraph 0113, wherein although the systems are shown to be the same on the driver and passenger seats, in fact, their function and mode of operation is different and this may dictate a different antenna arrangement for the various seats. Antenna sets or groups 65 and 66 associated with the passenger seat 62 are occupant classification sensors for the purpose of determining, for example, whether there is a child or a rear-facing child seat present or if the seat is unoccupied, in which case, the airbag will be suppressed or perhaps depowered. Antenna groups 65, 66 may be integrated into the passenger seat 62 in the same manner as antennas of the antenna sets 4, 6 are integrated into the seat. Wherein, the sensors, antennas and/or other elements of the passenger seat can be the second network having a second plurality of end points as claimed);

As pre claim 12, claim 11 is incorporated and Breed discloses **wherein the end point comprises a sensor** (Breed, Fig 3, paragraph 0113, wherein antenna sets or groups 65 and 66 associated with the passenger seat 62 are occupant classification sensors for the purpose of determining, for example, whether there is a child or a rear-facing child seat present or if the seat is unoccupied, in which case, the airbag will be suppressed or perhaps depowered. Antenna groups 65, 66 may be integrated into the passenger seat 62 in the same manner as antennas of the antenna sets 4, 6 are integrated into the seat)**, and wherein the second end point comprises an actuator** (Breed, Fig 9, paragraph 0137, wherein the vehicle control routine 156 may therefore correspond to or encompass a processor and control equipment that is coupled

to vehicular parts that affect operation of the vehicle, e.g., the brakes, steering wheel and throttle, and possibly servos or **actuators** therefor);

As pre claim 13, claim 11 is incorporated and Breed discloses **wherein the network comprises a first network type, wherein the second network comprises a second network type, and wherein the first network type is distinct from the second network type** (Breed, Fig 3, paragraph 0105, wherein the connections between the antennas and the ECU 9 may be a wired or wireless connection. Thus, components connected using wired connection can be the first network type while components connected using wireless connection can be the second network type);

As pre claim 14, claim 1 is incorporated and Breed discloses **wherein the automated vehicle response comprises at least one of: selectively activating an actuator; collection of selected data; moving an actuator to a selected position; delaying the automated vehicle response for a hold period; delaying the automated vehicle response for a detected event, wherein the automated action plan comprises an event detection description; or providing a notification associated with any one or more of the foregoing** (Breed, Fig 9, paragraph 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156);

As pre claim 15, claim 1 is incorporated and Breed discloses **wherein the automated action plan comprises an event detection description, and wherein the automation execution**

circuit is further structured to detect an event in response to the event detection description, and to implement the automated vehicle response further in response to the detected event (Breed, Fig 9, paragraph 0094-0095, 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156);

As pre claim 16, claim 1 is incorporated and Breed discloses **wherein the automation description further comprises a vehicle operating condition, and wherein the automation management circuit is further structured to provide the automated action plan in response to the vehicle operating condition** (Breed, Fig 9, paragraph 0094-0095, 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156);

As pre claim 17, claim 1 is incorporated and Breed discloses **wherein the automation description further comprises an external operating condition, and wherein the automation management circuit is further structured to provide the automated action plan in response to the external operating condition** (Breed, Fig 9, paragraph 0094-0095, 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or

activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156);

As pre claim 18, claim 1 is incorporated and Breed discloses **wherein the automation description further comprises an external operating condition, and wherein the automation management circuit is further structured to provide the automated action plan in response to the external operating condition** (Breed, Fig 9, paragraph 0100, 0136, wherein steps 151, 152 and 153 determine whether any of the measured heartbeat, respiration and motion rates are normal and if not, i.e., if one is not normal, a warning and feedback system is invoked or activated at 154. If the driver fails a feedback test generated by the warning and feedback system, step 155, then a routine to control the vehicle is invoked or activated at 156. The vehicle control routine that is invoked at step 156 may involve, for example, signaling to a remote site or facility for attempted driver communication and then for exercising vehicle control provided there is sufficient equipment on the vehicle to allow the remote operator to observe the driving conditions, traffic, etc. and thus permit a remote operator to slow the vehicle and guide it off onto a shoulder);

Claims 202-207 are rejected under the same rationale as claims 1-8 and 10-18.

Conclusion

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to HAMZA N ALGIBHAH whose telephone number is (571)270-7212. The examiner can normally be reached 7:30 am - 3:30 pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Wing Chan can be reached on (571) 272-7493. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/HAMZA N ALGIBHAH/
Primary Examiner, Art Unit 2441